

**AMENDED AND RESTATED
MEMORANDUM OF ASSOCIATION
OF**

Ychad.eth BORG

A foundation company limited by guarantee without any share capital

ADOPTED BY FOUNDER NOTICE ON [DATE]

**Registered Office:
c/o International Corporation Services Ltd.
Harbour Place, 2nd Floor 103
South Church Street
P.O. Box 472
George Town
Grand Cayman KY1-1106
Cayman Islands**

MEMORANDUM OF ASSOCIATION

OF

Ychad.eth BORG

A foundation company limited by guarantee without any share capital

ADOPTED BY FOUNDER NOTICE ON [DATE]

1. The name of the Foundation Company is Ychad.eth BORG.
2. The Foundation Company is a company within the meaning of the Companies Act (Revised) and a Foundation Company within the meaning of the Foundation Companies Act (Revised). The registered office of the Foundation Company shall be at the offices of International Corporation Services Ltd., PO Box 472, 2nd Floor, Harbour Place, 103 South Church Street, George Town, Grand Cayman KY1-1106, Cayman Islands, or at such other place as the directors may from time to time decide.
3. The objects for which the Foundation Company is established are restricted to doing all such things as in the opinion of the directors are in accordance with, or in the furtherance of, or which are incidental or conducive to, any or all of the Purposes as such term is defined in the Bylaws from time to time.
4. The Foundation Company shall have and be capable of exercising all the functions of a natural person of full capacity irrespective of any question or corporate benefit, as provided by section 27(2) of the Companies Act (Revised)
5. The Foundation Company may not carry on a business for which a licence is required under the laws of the Cayman Islands unless duly licensed.
6. No portion of the income or property of the Foundation Company from whatever place or source shall be paid or transferred directly or indirectly by way of dividend, bonus or otherwise howsoever by way of profit to the members, proposed members, directors or supervisors, or other personnel of the Foundation Company, as such, apart from authorised remuneration for services to the Foundation Company.
7. The liability of the members is limited.
8. The Foundation Company may cease to have members.
9. Each person who is a member undertakes to contribute to the assets of the Foundation Company in the event of the Foundation Company being wound up during the time that the person is a member, or within one year afterwards, for payment of the debts and liabilities of the Foundation Company contracted before the time at which the person ceases to be a member, and the cost, charges and expenses of the winding-up of the Foundation Company, and for the adjustments of the rights of the contributories amongst themselves, such amounts as may be required, not exceeding the sum of one United States dollar (US\$1.00).

10. If on the winding-up or dissolution of the Foundation Company there remain surplus assets after the satisfaction of its debts and liabilities, the same shall be paid or transferred in accordance with the provisions of the Bylaws and subject to any approvals required therein (including any DAO Approval or yChad Multisig Approval, as applicable).
11. This Memorandum and the Articles of Association may, subject to any limitations or approvals set forth in the Bylaws, be altered in accordance with the Bylaws (including any DAO Approval or yChad Multisig Approval, as applicable).